

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2023

BEFORE HER HONOR : SIE-A-NYENE G. YUOHCHIEF JUSTICE
BEFORE HER HONOR : JAMESETTA H. WOLOKOLIEASSOCIATE JUSTICE
BEFORE HIS HONOR : JOSEPH N. NAGBE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA.ASSOCIATE JUSTICE
BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY,SR.....ASSOCIATE JUSTICE

Joseph Grann represented by his attorney-in-facts, Alice Grann)
and Augustus Vogar, of the City of Brewerville, Montserrado)
County, Republic of Liberia.....Appellant)

Versus)

APPEAL

Sherman & Sherman, Inc., R. Fole Sherman Law Building, 17th)
Street and Cheeseman Avenue, Sinkor, Executor, and other)
beneficiaries of Seymour Grann Will, of Monrovia, Republic of)
Liberia.....Appellees)

GROWING OUT TOF THE CASE:

Joseph Grann, represented by hi attorney-in-facts, Alice Grann)
and Augustus Vogar, of the City of Brewerville, Montserrado)
County, Republic of Liberia.....Objector)

OBJECTION TO THE
PROBATION AND
REGISTRATION OF THE
LAST WILL AND
TESTAMENT OF THE
LATE SEYMOUR GRANN

Sherman & Sherman, Inc., R. Fole Sherman Law Building, 17th)
Street and Cheeseman Avenue, Sinkor, Executor, and other)
beneficiaries of Seymour Grann Will, of Monrovia, Republic of)
Liberia.....Respondents)

HEARD: November 16, 2023

DECIDED: February 7, 2024

MADAM JUSTICE WOLOKOLIE DELIVERED THE OPINION OF THE COURT

Seymour Grann, a British national and a resident of Liberia for more than forty years, died in Monrovia on November 13, 2020. On November 26, 2020, the Co-appellee Sherman & Sherman Inc., filed a petition before the Monthly and Probate Court for Montserrado County, praying the court to probate and register the Last Will and Testament of Seymour Grann, and to qualify the executor named in the said Last Will and Testament. Because the validity of the proffered Last Will and Testament of Seymour Grann is the subject of the controversy out of which this appeal emanates, we quote verbatim the said instrument:

"LAST WILL AND TESTAMENT
OF SEYMOUR GRANN

I, Seymour Grann, a British national and a resident of the City of Monrovia, County of Montserrado, Republic of Liberia, taking into consideration the uncertainty of life and the certainty of death, and being of sound mind and disposing memory, do hereby make this my Last Will and Testament in manner and form as follows, thereby revoking any and all Wills and Testaments and any codicils heretofore made by me.

1. I hereby declare that I am divorced and at the time of the making of this my Last Will and Testament, unmarried.
2. I declare that I have one adopted son, in person of Joseph R. Grann, who was adopted by me in the Monthly and Probate Court for Montserrado County, Republic of Liberia, under the gavel of His Honor the late John L. Greaves, then Probate Court Judge, on the 4th day of January, A.D. 2003, who is alive and whom references are made throughout this my Last Will and Testament.
3. I direct that all my debts and expenses of my last illness and my funeral and burial expenses be paid by the Executor of this my Last Will and Testament as soon as is legally and practically permissible and possible to do so out of my Estate.
4. Whatever money I may have at the time of my death at the Liberian Bank for Development and Investment (LBDI), a bank financial institution operating and existing under the laws of the Republic of Liberia and Bank of America, California, United States of America, I hereby give, devise and bequeath to the below named persons, institutions and/or organizations, as follows:
 - (a) To Samuel Dougan, former Director of the erstwhile Africa Motors Liberia, I give, devise, and bequeath the amount of US\$50,000.00 (United States Dollars Fifty Thousand) for all the support he so generously gave me in my job whilst serving as Managing Director of Reelin (Liberia) Inc.
 - (b) To my housekeeper, Richard Jai, I give, devise and bequeath the amount of US\$100,000.00 (United States Dollars One Hundred Thousand) in recognition of the good services he rendered me during my natural life.
 - (c) To my driver, whomsoever he/she may be at the time of my death, I give, devise and bequeath the amount of US\$20,000.00 (United States Dollars Twenty Thousand) in recognition of the good services he/she render me during my natural life.
 - (d) To Amos Quaye, Deputy House Keeper, I give, devise and bequeath the amount of US\$50,000.00 (United States Dollars Fifty Thousand).
 - (e) To my adopted son, Joseph R. Grann, I give, devise and bequeath the amount of US\$1,000.00 (United States Dollars One Thousand) only. I have elected to give, devise, and bequeath to Joseph R. Grann only

US\$1,000.00 (United States Dollars) because of his dishonest and disrespectful attitude and also because of his failure to live up to my expectation of his becoming a good and law-abiding gentleman.

(f) To my secretary of many, many years totaling twelve (12) years, A. Clementina W. Johnson of CICA Motors Liberia Inc. (formerly Reelin Liberia Inc.), I will, give, devise and bequeath the amount of US\$20,000.00 (United States Dollars Twenty Thousand).

5. I hereby direct and authorize the Executor of this my Last Will and Testament to ensure that an annual Golf Tournament is organized under the name and style: The Seymour Grann Golf Tournament and that a trophy be awarded the winner of the tournament each year for a period of ten (10) years. To this end, my Executor is hereby authorized and directed to allocate and set aside the amount of US\$60,000.00 (United States Dollars Sixty Thousand) to be used for the tournament at the rate of US\$6,000.00 (United States Dollars Six Thousand) per year for the ten (10)-year period.

6. I hereby will, devise, bequeath, and give the contents of my house and/or apartment, sports room and gymnasium and my safe (123451) to Juerg C. Landolt, owner of Monrovia Brewerville Inc.

7. I hereby will, devise, bequeath, and give to Ghassan Basma of Africa Motors, as at the time of the making of this Will, the amount of US\$400,000.00 (United States Dollars Two Hundred Thousand) absolutely. This is for saving my life in September, 2017.

8. I hereby nominate, appoint and constitute Sherman & Sherman, a law firm organized, existing and operating under the laws of the Republic of Liberia, with offices at the R. Fole Sherman Law Building, 17th Street and Cheeseman Avenue, Sinkor, Monrovia, Liberia, as the Executor of this my Last Will and Testament. Further, because of the explicit confidence and trust that I repose in my herein named Executor, I hereby direct that said law firm be not required to post any bond as a condition precedent to its exercising the duties as Executor of my Last Will and Testament.

9. I hereby will, devise, bequeath unto and authorize the Executor of this my Last Will and Testament, to withhold fifteen percent (15%) of cash from whatever cash I may have and of which I am seized up to the date and time of my demise, as compensation for serving as Executor of my Testate Estate and for all antecedent legal services provided me over the years and during my life time.

10. I hereby will, devise, bequeath and give the rest and residue of my assets not herein specifically willed, devised, bequeathed and/or given to any person, irrespective of where such assets are or may be located to all those beneficiaries named in this my Last Will and Testament to be distributed

amongst them proportionate to the cash amount or value of the assets received by each under this Will.

11. I hereby declare that this Last Will and Testament of mine supersedes, overrides, nullifies, revokes and replaces any Last Will and Testament (s) and any codicil (s) thereto which I may have made and executed and is in existence up to the date of execution of this my instant Last Will and Testament shown below.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my signature on this my Last Will and Testament this 15th day of May, A.D. 2019.

Seymour Grann
TESTATOR

ATTESTATION

On the date last above written, that is to say, the 15th day of May, A.D. 2019, Seymour Grann, known to each of us to be the person whose signature appears at the end of this Last Will and Testament, declared to us, the undersigned, that the foregoing instrument consisting of three (3) pages, including the page on which we have signed as witnesses, is his Last Will and Testament. The Testator, Seymour Grann, signed his Last Will and Testament in our presence and at his request, in his presence and in the presence of each other, we now sign our names as witnesses.

Dazoe Sherman

WITNESS

Residing at: Mamba Point

Tel No.: 0886598002

Roberta T. Parker

WITNESS

Residing at: Brewerville, Mont. Co. Liberia

Tel No.: 0777552946

Golda A. Bonah Elliot

WITNESS

Residing at: Smythe Rd. Congo Town

Tel. No.: 0886516471

On December 28, 2020, the appellant, Joseph Grann, filed objection to the probate and registration of the proffered Last Will and Testament of Seymour Grann; the objection was withdrawn and an amended objection subsequently filed. The relevant contentions of the twenty-nine-count amended objection are as follows:

- a. That the objector is the only surviving heir of Seymour Grann, by virtue of the adoption of the objector sometime in January 2003, by the late Seymour Grann, who is said to have written the purported Last Will and Testament offered for probate and registration on December 4, 2020, by the purported executor. The said purported Last Will and Testament was submitted to probate grossly contrary to law in that the testator died on November 13, 2020, and less than thirty (30) days after the death of

the late Seymour Grann, the purported Will was submitted for probate and registration. Objector requests Your Honor to take judicial notice of the Notice of assignment issued out of this Court on request of the purported executor on December 2, 2020, for probate and subsequent registration of the said Will of Seymour Grann in support of this averment.

- b. That objector says that he was not served with any writ of summons or assignment nor was he presented a copy of the petition for the reading of the document said to be the purported Last Will; therefore, deprives him of due process, for which the purported Will of his father should be ordered set-aside. That is there was never a proper service in that a writ of summons commences an action before a court as in this instant case, a proper service and/or summons from the probate court was not issued/served by court's officers (sheriff or bailiff) on the objector. Objector requests Your Honor to take judicial notice of the case file in support of this averment along with the email sent to the objector by Cllr. H. Varney Sherman, attached as objector Exhibit "O/1", in support of this averment.
- c. That objector avers that the instrument purporting to be the Last Will of his late father, which is being offered to be admitted into probate, is a document, which content was known to Cllr. Varney Sherman, one of the executors of the said document offered into probate. Two (2) of the purported signatories said to be present when the document was signed by the testator looked similar. For this reason, objector objects to the purported document being probated. Please find attached objector's exhibit "O/1" in bulk containing, among others, an email from Cllr. Sherman as a cogent part of this averment.
- d. That objector says and submits that in keeping with the rule governing probate court, when a Will is offered for probate and registration, after the breaking of the seal of the Will and reading same in open court, the executor is under obligation to ensure that the Will is published within a widely read newspaper for thirty (30) days as provided in the Civil Procedure Law on service by publication. In this instant case, since the reading of the purported Last Will and Testament of Seymour Grann, there has been no such publication, which neglect and failure renders the Will a fit subject for dismissal; hence, this objection will lie.
- e. That objector says and submits that the purported Last Will and Testament should be denied and set aside for reason that its contents significantly indicates that the objector has been disinherited, which act is grossly contrary to the laws under adoption in that the adoptive parents promised to take care of the said child and for the said adopted child to inherit from the adoptive parents as if the said child was begotten out of wedlock. Domestic Relations Law provides under section 4.72. Effect of Adoption. 2. *Upon relation of adoptive parent and adopted child. After the making and entry of an order of adoption, the relation of parent and child and all rights, duties and other legal consequences of the natural relation of child and parent shall hereafter exist between such adopted child and the adoptive parents adopting such child. From the date of the order of adoption, the adopted child shall be entitled to inherit real and personal property from and through the adoptive parents in accordance with the statutes of descent and distribution and the adoptive parents*

shall be entitled to inherit real and personal property from and through the adopted child in accordance with said statutes. That objector says where there is no surviving spouse, he being the only surviving heir of the body should be given the right to administer his late father's estate.

- f. Objector says that his late father was never of sound mind and disposing memory at the time of the drafting and execution of the agreement purporting to be the Last Will and Testament of the late Seymour Grann for which objector is ready and prepare to produce evidence to that effect and if need arises, objector shall request court for a writ of subpoena on those relevant entities and persons to this effect.
- g. That objector says and submits that the signatures appearing on the three (3) sheets purporting to be the Last Will and Testament of the late Seymour Grann varies. Therefore, objector attach in support of this averment copy of document with the testator true signature. Objector has attached Exhibit "O/1" in bulk containing, among others, a portion of a document containing the testator's signature, which instrument was also prepared by the same Law Firm, Sherman & Sherman. Objector gives notice that he will produce the full copy of the document containing the testator's signature should the respondents deny this assertion.
- h. That objector avers and says some or all of the witnesses have apparent, physical and direct relationship with the Sherman & Sherman Law Firm. That is: (1) Mr. Dazoe Sherman, phone number 0886598002, is by public record an employee and family member of Cllr. H. Verney Sherman, one of the lawyers, stakeholders/owners of Sherman & Sherman; (2) Cllr. Bona Elliot, with phone number 0886516471, is also in public notice and information an employee of Sherman & Sherman law firm: (3) Roberta T. Parker, with phone 077553946, is also said to have connection with at least one or two of the beneficiaries; and (3) Cllr. Varney Sherman who informed the objector about the content of the Will before it was submitted for probation, is one of the signatories of the Will, but knew and revealed the content of the purported Will before it seal was broken in opened court. These facts create undue influence on said document purporting to be Last Will of the objector's father. Hence, the said Will should be set aside and a Letters of Administration ordered issued in favor of the objector.
- i. That, further, objector says that the witnesses of the purported Will are not disinterested individuals. The witnesses or a majority of the witnesses have peculiar individual and organizational interests, which makes the "Will" to be invalid as demanded in section 2.22 (2) of the Decedent Estates law: *"A beneficial disposition or appointment made to an attesting witness is void unless there are, at the time of the execution and attestation, at least two other attesting witnesses to the Will who receive no beneficial disposition or appointment thereunder, but in such event, such disposition or appointment to an attesting witness shall still not be effective if the Will cannot be proved without the testimony of such witness.* Also, syllabus 3 of *Thomas et al v. Dayrell*, 15 LLR 304 (1963) says: *"Undue influence invalidating a will is that which substitutes the wishes of another for those of the testator"*. Hence, the objector says the purported Will should be set aside and a Letters of Administration should be ordered issued in favor of the objector.

- j. That objector maintains that there is glaring misrepresentation, fraud and deceit of the purported Will, which made it a fit subject lacking the standards for lawful probate and registration. In the case: *Perry et al v. Knight et al*, 6 LLR 154, the Honorable Supreme Court defined what is considered a Will begotten by fraud, misrepresentation and undue influence "...it was obtained by fraud and imposition practiced upon the testator; or by duress or that the testator was not of competent age; or was a feme covert; or was not of sound and disposing mind and memory; or that it was obtained by undue influence. But it is said that undue influence is not that which is obtained by modest persuasion, or by arguments addressed to the understanding, or by excessive importunity, or threats, or in some other mode by which a dominion is acquired over the will of the testator, destroying his free agency, and constraining him to do against his free will what he unable to refuse". Hence, the Will should be set-aside, and a Letters of Administration ordered issued in its place in favor of the objector, being the only surviving next-of-kin of the late Seymour Grann.
- k. Objector says and submits that because his late father, the testator of the purported Last Will and Testament was not of sound mind and disposing memory, due to protracted illness, he could not have known that majority of his properties were never fully distributed, bequeath and devised. Objector gives notice that during trial, he will request for a writ of subpoena to hospitals, clinics, doctors and physicians that treated the late Seymour Grann before his alleged brief illness."

The appellant prayed the probate court to order the Will set aside and order issued a Letters of Administration to the appellant to administer the intestate estate of Seymour Grann; order that the executor named in the Will be prevented from carrying out any act as executor; order investigation into the allegation of fraud in keeping with Section 2.11 (c) of the Decedent Estates Law, and order the executor to account for all properties and monies they have used out of the estate of Seymour Grann.

On January 15, 2021, the appellee, Sherman & Sherman, Inc, the named executor of the Last Will and Testament of the late Seymour Grann, filed resistance to the appellant's objection, the relevant counts of which are quoted below:

- a). Respondents say that to submit a will for probate and registration does not require a period of more than thirty (30) days after the death of the testator as erroneously averred by the Objector. The law in this jurisdiction provides that a last Will and Testament can be presented to the probate Court within thirty (30) days after the death of the Testator. Hence, Count One (1) of Amended Objection is fit subject for denial and dismissal. Respondent therefore prays Your Honor and this Honorable to so rule and declare.
- b) Respondents say that Cllr. Varney Sherman was neither in error nor did he commit any offense of indiscretion by informing the objector of the demise of his adoptive father whom the Objector had not been in contact and

communication with over the nearly ten (10) years preceding his demise on November 13, 2020. Respondents say that the late Seymour Grann, during his nature life, requested Sherman & Sherman to prepare his last Will and Testament in which he named Sherman & Sherman, Inc. as Executor of the said last Will Testament which he left in the custody of the Firm for presentation in court upon and/or subsequent to his demise. Respondents further say that Cllr. Varney Sherman, as one of counsels for the late Seymour Grann at the instance of whom said Last Will and Testament was prepared, is certainly au courant with the content and verbiage of the said Last Will and testament of Seymour Grann, but instead extended an open invitation to the Objector and people he knew were associated with late Seymour Grann during his natural life in Liberia (one of whom is the Objector) in order to enable them be present in court for the reading of the said Last Will and Testament and its subsequent admission into probate assuming that no objection is interposed to proving of the Last Will and Testament.

- c) Respondents say that neither Cllr. Varney Shaman nor any of the lawyers in the employ of Sherman & Sherman the named Executor was under any obligation to inform the objector or any of the other beneficiaries name in the said Last Will and Testament of the late Seymour Grann about the fact that his Last Will and Testament was due to read in open court on the 4th day of December A.D. 2020.
- d) Respondents say that the averment relating to the provision of the Decedent Estates Law Chapter 3, Subsection 3.7 being a mere statement of law, same presents no traversable issue and therefore ordinarily will require no traversal. However, respondents say that the said provision of law cited in count Two (2) of the Amended Objection is not applicable to situations in which a person dies testate and does leave an executed and duly attested Last Will and Testament in conformity with law. Respondents say that the law cited by the objector, being one that relates specifically to a person who dies intestate, the same is of no legal efficacy and is inapplicable to the instant case. Hence, Count Two (2) of the Amended Objection is a fit subject for denial and dismissal and Respondents pray Your Honor and this Honorable to so rule and declare.
- e) Respondents say at no time did Cllr. Varney Sherman disclose to Objector the contents of the Last Will and Testament of Seymour Grann prior to the unsealing and reading of said Last Will and Testament on December 4, 2020, at 10:30 am in the Monthly and probate Court for Montserrado County. Respondents concede that Cllr. Sherman did inform objector to the effect that his adoptive father had died, and that he had been buried (on the 20th day of November 2020) in keeping with his wishes as expressed during the drafting of his Last Will and Testament. Further, that the funeral and burial expenses inter alia of the late Seymour Grann were underwritten by Sherman & Sherman and that therefore there was no need for Objector to worry about and concern himself with the burial of his adoptive Father. Respondents deem it impelling to reiterate as averred in Count Three (3) above, that the Objector had no

connection with his adoptive father since Objector's relocation to the United States up to and including the time of the demise of the testator, the late Seymour Grann. Respondents hereby gave notice that during the hearing of the objection, Respondents will parade witnesses to testify to the strained and/or broken relationship between the Objector and his adoptive father, the late Seymour Grann, the Testator.

- f) Respondents say that they do not deny the provision of the Chapter 113 subsection 3 of the Decedent Estates Law captioned, "Persons to be Served". Respondents say however, that consistent with said provision, notice/citation was conspicuously placed on the premises of the Monthly and Probate Court for Montserrado county and published in two (2) newspapers of wide circulation in Liberia, commanding all beneficiaries, legatees, and devisees named in the Last Will and Testament of the late Seymour Grann or such other persons having interest in the testate estate of the deceased to file objections, if any, to said Last Will and Testament on or before the 12th day of January A.D. 2021; when absent an objection, the said Last Will and Testament will be proved and admitted into probate. Attached hereto as Respondents Exhibit R/1 in Bulk, are copies of (1) the Notice of Assignment issued by the Monthly and Probate Court for Montserrado County on the 2nd day of December 4, 2020, assigning the reading of the said Last Will and Testament in court (ii) Notice/ Citation issued by the Monthly and Probate Court for Montserrado County to the General Public that the Last Will and Testament of the late Seymour Grann had been read in open court and the said Last Will and Testament would be proved and offered into probate on the 12th day of January, 2021, unless objections were interposed, which notice was posted in conspicuous place at the court and (iii) December 15, 2020, edition of the Front page Africa Newspaper and the December 16, 2020 edition of the New Democrat Newspaper carrying the said notice issued by the Monthly and Probate Court.
- g) Respondents say that it is in compliance with the notice issued by the Monthly and Probate Court for Montserrado County that the Objector filed the instant objection. So, assuming arguendo that objector was never served a Citation as alleged, the fact that objector issued a purported Power of Attorney to a third party and predicated upon which the instant Objection was filed, the objector, by that act, has submitted himself to the jurisdiction of this Honorable court and is estopped from raising the question of the Honorable court's jurisdiction over him. Respondents say, had objector elected to challenge the jurisdiction of this court for want of service or improper service (which is not alleged), then and in that case, Objector would have filed a Special Appearance for the singular purpose of challenging this court jurisdiction over his person. The objector having filed to so do counts four (4) Five (5) and Six (6) of the Objection are fit subject for denial and dismissal.
- h) Respondents respectfully pray Your Honor to take Judicial notice of the Decedent Estates Law cited above and observe that the law requires that the Last Will and Testament must be duly signed/ executed by the testator in the presence of at least two (2) attesting witnesses, something which was done in

the case of the Last Will and Testament of the late Seymour Grann. Respondents submit that nowhere in the above cited provision of the Decedent estates law is it mentioned who may or may not attest to the Last Will and Testament of a testator; i.e. whether or not the attesting witnesses are relatives, friends, professional colleagues or persons as in the instant case, who are in the employ of the testator's Lawyer who prepared/ drafted the testator's Last Will and Testament. For the want of legal basis, Respondent pray Your Honor and this Honorable Court to deny count seven (7) or the Amended objection.

- i) Respondents say that the objector has averred that the signatures of two (2) of the attesting witnesses appearing on the Last Will and Testament of the late Seymour Grann look similar without stating which signatures look alike, even though the names of the attesting witnesses are clearly written under each of their signatures. Respondents say for this lack of specificity, Respondents are unable to intelligibly traverse said averment. Respondents therefore pray Your Honor and his Honorable court to deny and dismiss count Seven (7) of the Amended Objection.
- j) Respondents say that they do not deny the provision or affirmatively state that they concede the law, same being Section 4. 72 "Effect of Adoption" of the Domestic Relations Law. As cite therein Respondents say however, that where a parent, whether biological or adoptive, elects to make a testamentary gift to third parties of his properties during his natural life via the execution of a Last Will and Testament as in the instant case, the testator has the right of election to give or not to give anyone a testamentary gift under his or her will in such manner, in quantum, and to whatever extent deemed necessary in the exclusive judgment of the testator.
- k) Respondents submit and say that the testator was of sound mind and disposing memory at the time of the execution of his Last Will and Testament, which was prepared by Sherman & Sherman, his legal counsel of longstanding upon his request as evidenced by the testator's signature appearing thereon and the affixing of the testator's seal bearing his name on each page of the Last Will and Testament. The onus, therefore, is on the Objector to prove the contrary. That is to say, the Objector carries the burden to prove (i) that the Testator was not of sound mind and disposing memory at the time of the making and execution of his Last Will and (ii) that the signature appearing thereon is not his signature and (iii) the Testator never employed the use of a seal in combination with documents executed by him during his natural life. A fundamental principle under our law is that the burden of proof rests with he who asserts or maintains the affirmative.

The appellee prayed the court to deny and dismiss the appellant's amended objection in its entirety and order the proving and subsequent admission into probate the Last Will and Testament of the late Seymour Grann, and issue Letters Testamentary to the executor named in the Will, ordering the executor to administer the testator's estate under the direction of the court in keeping with law.

The appellant filed a reply to the appellee resistance, reiterating and reaffirming the allegations made in the objection, and again prayed that the proffered Last Will and Testament of Seymour Grann be set aside by the court and the Letters of Administration be issued to the appellant for the administration of the intestate estate of Seymour Grann.

Several pre-trial motions were filed by the parties following the exchange of pleadings, including a motion to dismiss, motion to join, motion to strike among others. After the disposition of these motions by the probate court, and the pursuit and disposition of remedial proceedings sought over rulings made on some of them, the case was assigned for disposition of law issues. After entertaining arguments on the law issues, the court ruled that given the contested issues of fact raised by the parties, especially the issue of fraud raised by the appellant, these issues should be submitted for a jury trial at the Civil Law Court. The Probate Court forwarded to the Civil Law Court the following issues for determination by the trial jury:

1. Whether fraud was perpetrated by the appellee and the other named beneficiaries in the execution of the Will.
2. Whether the signature appearing on the will is the genuine and authentic signature of the testator.
3. Whether undue influence was exerted by the appellee and the other named beneficiaries on the testator at the time of execution of the Will.

It is the law in this jurisdiction that issues of fraud and /or undue influence being issues of fact not cognizable before the Probate Court, where same arise, they must be forwarded to a circuit court to be heard and determined by a jury. Decedents Estates Law, Rev. Code 8:105.1 (4); Rule 19 of the Probate Court; *Nah v. Richards* 16 LLR 89, 93 (1964); *Tarr v. Wright*, Supreme Court Opinion, March Term, 2015.

The Civil Law Court conducted a jury trial into the issues raised, with both the appellant and the appellees presenting evidence in support of their respective positions. At the conclusion of the trial, the trial jury returned a unanimous verdict of non-labile in favor of the appellee for the appellant's failure to prove the allegation of fraud and undue influence against the appellee. Thereafter, the appellant filed a motion for new trial, contending that the jury verdict runs contrary to the weight of the evidence adduced at trial. The motion was resisted by the appellee, and denied by the court. The court ruled that the appellant failed to establish that fraud and undue influence was exerted by the appellee on the late Seymour Grann. The Clerk of the court was ordered to return the case file to Probate Court for entry of final judgment on the jury verdict.

On August 23, 2022, the Judge of the Probate Court entered final judgment in the case, affirming the jury verdict of non-liaible in favor of the appellee. The judge held that the appellant failed to prove the allegations of fraud and undue influence asserted against the appellee, and that the signature appearing on the proffered Last Will and Testament of the late Seymour Grann is his genuine signature. The judge ordered that the Last Will and Testament of the late Seymour Grann be admitted into probate and registered in keeping with law.

The appellant excepted to the final judgment of the Probate Court and announced an appeal to the Supreme Court, filing a thirty-count bill of exceptions which details his disagreements with the court's judgment. The relevant counts of the appellant's bill of exceptions are as follows:

1. That Your Honor committed reversible error when you held that the appellant did not prove fraud and undue influence thereby confirming the verdict of the petit jury. However, the law provides that fraud being an affirmative plea, the burden of proving the allegations of fraud and undue influence shifted to the appellees when the appellees refuted the allegations of the appellant relative to the fact that the appellees did not commit fraud at the time of the execution of the purported Will. *Flo v. Republic*, 29 LLR 3 (1981), text at pages 13-14, the Honorable Supreme Court held that: *while it is a general principle of law that the burden of proof rests on the party who maintains the affirmative, etc., where the facts lie peculiarly to the knowledge of a party to a cause, he shall be held to prove the negative"*
2. That Your Honor committed reversible error when you failed to include one of the most important allegations of the appellant as to the mental capacity of the deceased at the time the purported Will was executed. If this issue of the deceased not been of sound mind and disposing memory was made one of the issues to be passed upon by the Jury, this would have been part of the charge of the Jury, which could have changed the verdict of the Jury. Interestingly, appellant averred that the deceased was not of sound mind and disposing memory at the time of the execution of the purported Will, which allegation the appellees refuted stating that, the late Seymour Grann was of sound mind and disposing memory, thereby shifting the burden of proof to the appellees at trial to prove that at the time the purported Will was executed, the late Seymour Grann was of sound mind and disposing memory. Contrary to this, during trial, appellees, Cllr. Varney Sherman informed the jury and the court that the late Seymour Grann was sick from 2017-2019 and said further on cross examination on 28 day Jury Sitting that: "I never said I was absent. Mr. Moses Paegar was my employee, as I owned the law firm. I appointed him as Managing Director when I elevated myself to Senior Consultant Counsel. I instructed Cllr. Paegar after Seymour Grann has asked me to draft the Will, so that Cllr. Moses Paegar would do the actual draftitng. But I was here in Liberia in April and May 2019 and supervised Mr. Moses Paegar. From this statement, it can be inferred that Cllr. Sherman been a longtime friend of the deceased had both fiduciary relationship and power over the deceased, because Seymour was aged and of weak mind due to his continual

serious illness, which creates a doubt. Knowing that the deceased was well educated but was incapacitated to supervise his own Last Will with Cllr. Paegar; instead, it was based on Cllr. Sherman instructions and supervision that the purported Will was executed without the input and free will of the deceased. When a similar situation occurred, the Supreme Court held that *"evidence in the will contest that the testator was of weak mind, and that power has been exercised over him by a party standing in confidential relationship to him who receive a considerable portion of his estate raises a presumption of fraud more to rebut it, than mere proof of formal execution of the Will in the presence of two witnesses; there must be evidence that the disposition was the exercise of testator's free will."* **Boyd v. Boyd, 66 283; Wilon v. Mitchell, 101 PA-495, 36 LRA L.R.A. 726.** The High Court of England ruled in the case: Kenward v. Adams (1975), the Golden rule originated from the (1975) case. The case established that, *"when making the will of an aged testator or a testator who suffered a serious illness, it should be witnessed and approved by a medical practitioner who satisfies themselves of the capacity and understanding of the testator, and records and reserves their findings."* The Court of Appeal in England held in the case: Key and another v. Key and others (2010) that *"when a solicitor is instructed to prepared a will for an aged testator, or for one who has been seriously ill, he should arrange for a medical practitioner first to satisfy himself as to the capacity and understanding of the testator, and make a contemporaneous record of his examination and findings. Though the terms of the will were rational, and the result of its dispositions might be fair, nevertheless, the burden on the objectors of establishing lack of capacity had been met; the element of suspicion arising from the circumstances, although by no means overpowering, is sufficient to call for affirmative proof of knowledge and approval, beyond that constituted by the due execution of a rational will."* In the instant case, witnesses indicated that the deceased was ill from 2017 to his death in November 2020. In fact, records before the court provided by the medical facility of ClinicLab Center indicates variations in the ages of the deceased at different times; that is, in September of 2018 the medical record indicates the deceased was at age 70; in November of 2019 he was at age 81; and in November 2020, he was at age 82. These variances support a finding that the deceased was not of sound mind when the purported Will was drafted at the instruction and supervision of Cllr. Varney G. Sherman.

3. That Your Honor committed reversible error when although you noted that the signature of the deceased varies from document to document, which does not support the signature on the instrument relied upon by the appellees as the purported Last Will and Testament of the late Seymour Grann. That signature on the purported Will was not the best evidence given the fact that said document had no evidence to substantiate the veracity as to the authenticity of the deceased signature to establish that the said Will contained the true and correct signature of the deceased. In this case, the testimonies of the appellee/respondent's principal witness in person of Cllr, Varney Sherman, stating that the signature of the deceased differs from document to document; predicated upon Cllr. Sherman's testimony presented before the court when he appeared as one of the appellant's witnesses. The appellant/objector therefore subpoena a handwriting expert witness in person of James E. Monroe, who

informed the court that in order for him to establish the truthfulness of the deceased signature, he needed the originals of the documents before court and a period of seven (7) days to conduct his analysis and submit a report. This was the only opportunity the parties herein had to scientifically establish the genuineness of the deceased signature, considering that those alleged to have witnessed the purported Will are all interested witnesses because that are all employees of Sherman & Sherman Inc., that was bequest 15% of the Will and its residue. It is held that *"the genuineness of the signature may be sufficiently shown by credible evidence, such as the evidence of disinterested persons who saw the testator signed the Will or the opinion of handwriting experts. Testimonies of handwritten experts that the signature on the instrument is not that of the alleged testator if based on sound reason, and circumstances, supporting that theory may be sufficient to overturn the testimonies of subscribing witnesses that they saw the Will signed by standing alone."* 95 JSC subsection 413-414. AMAGASHIE V. TORMETIE, 25 LLR 92 (1976). *"The genuineness of a signature may be ascertained by comparison of the disputed signature with an admittedly genuine one; and when upon such comparison the two signatures are so much alike, in the many features of their construction that they agree or correspond in lines, angles, slants and space occupied, the fact of such correspondence is deemed to be evidence of highly, probative value that one is the tracing of the other, or a drawing from a model."* 29 Am Jur 2d, Evidence, section 806, n.16 (1967); *testimonies of handwritten experts that the signature on the instrument is not that of the alleged testator if based on sound reason, and circumstances, supporting that theory may be sufficient to overturn the testimonies of subscribing witnesses that they was the Will signed by standing alne."* 95 JSC subsection 413-414.

4. That Your Honor erred when you proceeded contrary to rules that are to be observed at all times; that is, the denial of appellant's application for the call logs of appellees/respondents' witnesses in person of Cllr, Varney Sherman to ascertain whether a call was placed to him by the late Seymour Grann on November 12, 2020, for Cllr. Sherman to take delivery of the deceased embossment machine. Also, to ascertain whether or not the respondents subpoena witness from LBDI did place a call to the late Seymour Grann to verify the check allegedly issued by the late Seymour Grann on November 10, 2020. Because of these errors, Your Honor final decision should be reversed.
5. Your Honor committed reversible error when you said in your ruling on the Motion for New Trial that the appellant did not prove fraud. In the instant case, he burden to establish the testamentary capacity of the deceased rests on the appellee to prove that at the time the purported Will was prepared by Cllr. G. Moses Pargar, predicated upon the instructions and the supervision of Cllr. Varney Sherman, the deceased was of sound mind and disposing memory for the said purported Will to be prepared in the way said document was executed. Interestingly, the appellee's witnesses in persons of Cllr. Varney Sherman, Mr. Jai, Mr. Quaye, Ms. Hiba Khoury, the CEO of Clinic Lab and one of the appellant's witness in person of Mr. Duncan, testified to the ill health of the deceased from 2017 up to his death, but failed to state what illness the deceased suffered during those years. These testimonies create a serious doubt,

which is a clear indication that the deceased though aged was seriously ill and as such, it was legal for the attending medical practitioner to have appeared before court to establish that at the time of the execution of the purported Will, the deceased was of testamentary capacity based on the deceased medical treatment coupled with the deceased medical history from Lebanon and Clinin Lab Center. The failure of the appellee to produce such testimony can be clearly inferred that the deceased was not of testamentary capacity when the purported Will was prepared by his lawyers.

6. That Your Honor again committed a reversible error when you fail to consider in totality the language of the distribution of the properties in the instrument said to be Will; that is, all of the named distributes are allotted money in future; contrary to this, Sherman & Sharman is allotted 15% if whatsoever cash. The allocation of 15% to Sherman & Sherman when the document distribution is not in percentage presents a doubt for which the said document should be set aside. Rather, Your Honor did not consider the variance in the document and therefore failed to instruct the jury in this direction.
7. The judge committed a reversible error when he ruled in this case stating that the appellant did not establish frau and undue influence when there are multiple instances which established that the named beneficiaries colluded to deprive the appellant of inheritance. For example, witness Jai informed court that when the late Seymour Grann was terminally sick, he witness Jai, called Ghassam Bassam who owns the largest share to call ambulance for the deceased. This leaves one to wonder why witness Jai did not call the medical facility that informed court during trial that they had placed a nurse at the deceased home and the said nurse was the one that informed the attending doctor of the seriousness of the deceased illness on November 13, 2020, but Ghassam Bassam; witness Climentine Johnson husband preached at the funeral and at the grave site of the deceased when the appellant, the only surviving heir was never mentioned and deprived of attending the funeral of his late father. This action of the deceased lawyers also showed that the purported Will content was being implemented before the reading of the Will.
8. That Your Honor erred during the disposition of law issues to set aside the legal issues raised by the appellant and forwarded the matter for trial on factual issues grossly contrary to practice, law and procedure in this jurisdiction, which provides that all legal issues should be disposed of before factual issues. Cllr. Varney Sherman on whose instructions and supervisions the said Will was drafted, witnessed the Will; kept the Will and presented the Will for probation and registration, which is a legal issue. The second issue is: given the content of the Will and preparation of the Will, whether same can be considered as a Will; the third issue: whether or not it was proper for Sherman & Sherman to draft a Will in which it allotted 15% to themselves. But Your Honor failed to consider these legal issues before transmitting the case to the trial court. Hence, Your Honor's Ruling should be reversed.
9. Your Honor committed reversible error when you ruled that the appellant did not prove fraud; given the variance of the deceased signatures, which was

acknowledged by the appellee/respondent in count 27 of the appellee/respondent's returns to the appellant/objector's amended objection, "...that as us generally the case with persons advancing in age, there tend to be slight variation in signatures; and that is why the testator realizing that he was advancing in age, decided to affix his personal seal to documents executed by him as a means of validating such documents." This averment was never confirmed by the appellee/respondent witnesses during trial; that is, from a clear perusal of documents before this court, which shows that the embossment machine of the late Seymour Grann has been used prior to his aging, a far back as 2009, and on business transactions; in other words, ten years before the purported Will was executed by the respondent.

The appellant's bill of exceptions challenges the correctness of the verdict returned by the jurors in the Civil Law Court and the final ruling entered thereon by the Probate Court. The appellant maintains that the late Seymour Grann was not of sound mind and disposing memory at the time of the execution of the purported Last Will and Testament; that the Will was a product of fraud and undue influence; that the signature appearing on the Will is not the genuine signature of the late Seymour Grann.

The appellant's contentions present a single issue for our disposition, which is, whether the instrument presented by the appellee as the Last Will and Testament of the late Seymour Grann is a product of fraud and undue influence.

The Supreme Court has held that fraud is a generic term which embraces all the multifarious means which human ingenuity can desire and are resorted to by one individual to gain an advantage over another by false suggestions, undue influence or by suppression of the truth. In its general or generic sense, it comprises all acts, omissions and concealment involving a breach of legal or equitable duty and resulting to damage to another and it can be classified into several categories such as actual, constructive, intrinsic, etc. *Johnson-Duff v. Harmon*, 11 LLR 344, 348 (1953); *Wilson v. Firestone*, 34 LLR 134, 143 (1986). Undue influence, in the context of Wills and estates, has been defined by the Supreme Court as that influence which compels a testator or testatrix to do something against his or her will and it is regarded as an element of fraud. *Murdock v. The United States Trading Co.*, 3 LLR 288, 295 (1932); *Rauls v. Manning and Railing*, 10 LLR 229, 231 (1949); *Johnson-Duff v. Harmon*, 11 LLR 344, 348 (1953); *Hill and Hill v. Parker*, 13 LLR 556 (1960).

At the trial in the Civil Law Court, the appellant presented the following evidence to support the allegation of undue influence and fraud in the preparation of the purported Last Will and Testament of the late Seymour Grann. The appellant's second regular witness, Counsellor Varney Sherman testified that his law firm, Sherman & Sherman, Inc. had been providing legal services to Reelin Liberia, Inc., an entity for which the testator served as Chief Executive

Officer for twenty (20) years, and that the testator is his personal friend. He testified further that the Will was prepared by the Managing Director of Sherman & Sherman, Inc., Counsellor Moses Paegar, and signed by the testator whose signature was witnessed by three attesting witnesses in persons of Counsellor Golda Elliot, Mr. Dazoe Sherman and Rebecca Parker who were all employees of Sherman & Sherman at the time of the drafting and signing of the Will. Counsellor Sherman stated that the Sherman & Sherman was named in the Will as the executor of the Will because the testator trusted the firm to manage his affairs after his death and to carry out his wishes.

Based on a request for a subpoena, the three attesting witnesses to the Will were also subpoenaed by the appellant to testify. Counsellor Golda Elliot, Dazoe Sherman and Roberta Parker, all employees of the Sherman and Sherman, Inc., appeared and testified that the testator signed his Will in the office of the Managing Director of Sherman & Sherman, Inc., and they were requested to serve as witnesses to the Will. According to the witnesses, the testator identified the document that they witnessed as his Last Will and Testament, and that the testator signed the instrument in the office of the Managing Director of Sherman & Sherman and that five persons were present in the Managing Director's office at the time of the signing of the Will, which included the testator, the three attesting witnesses and the Managing Director of Sherman & Sherman. The witnesses also stated that the testator embossed the Will with his personal embossment machine.

The appellant also placed on the witness stand one of the beneficiaries named in the Will, in person of Samuel G. Dougan, Jr. to testify. He testified that he had worked with the testator for about seventeen (17) to eighteen (18) years, and that he had a cordial professional and personal relationship with the testator during the period he worked with him.

These were the testimonies proffered by the appellant to prove that the appellee exerted undue influence on the late Seymour Grann in the preparation of his Last Will and Testament. The unspoken premise is that the appellee had close relationship to the testator, and therefore exploited that relationship to draft a Will which is against what the testator would have wanted.

The most recent decision of this Court on the issue of undue influence and fraud in the context of a challenge to the validity of a Will proffered for probate and registration is *Eleanor Harriet Taylor-Cooper, et al. v. J. Nyema Baker et al.*, Supreme Court Opinion, March Term, 2016. In that case, a lawyer, in concert with his wife, drafted a purported Will for his mother-in-law and then subsequently contacted three persons to attest to the purported Will. In the Will, the lawyer and his wife are both named as beneficiaries to the testator's estate and the lawyer was also named as executor of the Will. The two other daughters and named beneficiaries in

the Will challenged its validity before the Probate Court. A trial into the factual issues was had before the Civil Law Court and the jury found that there was no evidence of undue influence and fraud. A judgment affirming the jury verdict was entered by the Probate Court. On appeal, the judgment was reversed by the Supreme Court. The Court held that undue influence and fraud was perpetrated by the lawyer and his wife on the testator because (1) the Will was prepared by a lawyer who was a direct beneficiary and executor named in the Will; (2) the lawyer was married to the testator's daughter; (3) the testator lived with the lawyer and his wife when the Will was prepared; (4) the lawyer procured a Will form which he and his wife, an experienced secretary, used to type the purported Will; (5) the lawyer and his wife were the ones who contacted the attesting witnesses; and (6) the lawyer and his wife maintained possession of the Will, and after the death of the lawyer's wife, he continued to retain possession of the Will up to the death of the testator, his mother-in-law.

In regard to these factual findings in the cited case, the Court held that the attestation of the Will was irregular and contrary to Section 2.11 (b) of the Decedent Estates Law because the attesting witnesses, having signed not in the presence of the testator, did not exhibit their signatures to the testator. Section 2.11 (b) of the Decedent Estate Law states: "the attesting witnesses shall set forth their names in full when affixing their signatures and need not sign in the presence of the testator nor of each other, *but if any of them do not sign in the presence of the testator the one or ones not so signing shall exhibit his or her signatures to the testator and acknowledge same to him*" (emphasis ours). Based on these factual and legal reasons, the Court held that the Will was not valid and did not represent the true intent of the testator.

In the case before us, however, the factual and legal circumstances are quite dissimilar to the *Eleanor* case quoted above. Here, the attestation of the Will was done in accordance with law, as the attesting witnesses signed in the presence of each other and in the presence of the testator himself. The appellant's subpoenaed all three of the attesting witnesses, and all of them testified that each of them witnessed the Will in the presence of the testator and of the other two witnesses. Further, unlike the *Eleanor* case where the lawyer who prepared the Will and made himself a beneficiary thereunder, was a son-in-law to the testator, the testator in this case had no substantial emotional relationship with the beneficiaries, neither did he live with any of the beneficiaries. The relationship which existed between the testator and most of the beneficiaries was for the most part professional in nature. The Sherman & Sherman, Inc., for example, rendered legal services to Reelin Liberia, Inc., a corporation of which the testator was the Chief Executive Officer for many years, and through this longstanding Attorney-Client relationship which existed between Sherman & Sherman and Reelin Liberia, Inc., the testator became a friend to Counsellor Varney Sherman, founder of

the firm. Thus, the attorney-client relationship did not exist between Sherman & Sherman and the testator as it existed between Cllr. Baker and the testator in the *Eleanor* case, to warrant a finding of undue influence. It was in the course of Sherman & Sherman, Inc, providing legal services to Reelin Liberia for many years that Cllr. Sherman became acquainted with the testator. Samuel G. Dougan, Jr., another beneficiary under the Will, had worked with the testator for many years at Reelin Liberia, Inc., and even him did not know that the testator had prepared a Last Will and Testament in which a bequest was made to him.

Additionally, the facts in the *Eleanor* case even made it clear that the testator might not have known that a Last Will and Testament had been executed in her name since the Will form was procured by Counsellor J. Nyema Baker, brought home to where he and his wife lived and content of the Will decided by them. This was even made more certain by the fact that even the attesting witnesses to the Will did not sign the Will in the presence of the testator and did not subsequently display their signatures on the Will to the testator in keeping with section 2.11 (b) of the Decedent Estates Law.

In this case, however, the appellant's own witness, in person of Counsellor Varney Sherman, testified that it was the testator who requested the Sherman & Sherman, Inc, to draft his Last Will and Testament, and that based on this request, he, Counsellor Varney Sherman, instructed the Managing Director of the firm to draft the Will. The appellant's subpoenaed witnesses also testified that the Will was signed by the testator in their presence in the Managing Director Office and that they each affixed their signatures on the Will in the presence of the testator, who appeared very alert and sound.

Most importantly, in the *Eleanor* case, the lawyer (Counsellor J. Nyema Baker) who drafted the Will with the aid of his wife, bequeathed unto him and his wife the most delectable and most substantial portion of the testator's estate, to the extent that they willed unto themselves the house built by the father of the Objectors, who did not share a father with Mrs. Baker. Beside him and his wife, the only other beneficiaries under the Will were the Objectors, daughters of the testator, who were given just a lot of land each. Thus, it was patently obvious and unassailable from the Will itself that the lawyer (Counsellor J. Nyema Baker) exerted undue influence on the testator for the sole purpose of conferring substantial benefits on him and his wife at the detriment of the testator's two other daughters.

In this case, on the other hand, there are multiple beneficiaries named in the Will and the most substantial portion of the testator's estate was bequeathed to individuals who have no connection or relationship with Sherman & Sherman, Inc., at which offices the Will was drafted and signed. For instance, the single largest amount in the Will is given to Ghassan Basma of

Africa Motors, in the tune of Two Hundred Thousand United States Dollars. Other bequests made in the Will include: US\$50,000.00 to Samuel Dougan; US\$100,000.00 to Richard Jai, who was the testator's housekeeper; US\$20,000.00 to whoever would be the testator's driver at the time of his death; US\$50,000.00 to Amos Quaye, who was the testator's deputy housekeeper; US\$20,000.00 to Clementina W. Johnson, who was the testator's secretary of many years; US\$60,000 for an annual golf tournament in the testator's name for a period of ten (10) years. Sherman & Sherman was given 15% of all cash which the testator is seized of at the time of his death for compensation for serving as executor of the Will and for legal services rendered by the firm to the testator during his life.

The question is, did all of the beneficiaries named in the Will as stated above collude with Sherman & Sherman, Inc. in exerting undue influence on the testator to prepare the Will and make these gifts to them individually? We do not believe so. The records show that at the trial in the Civil Law Court, the appellee placed on the witness stand three of the beneficiaries named in the Will, namely, Richard Jai, Amos Quaye and Clementina W. Johnson, and they testified that they did not know that the late Seymour Grann executed a Will in which he named them as beneficiaries. They stated that it was Counsellor Varney Sherman who informed them after the demise of the testator that he (testator) left a Will in which they are named as beneficiaries and that said Will would be read in the Probate Court. Witness Clementina W. Johnson in fact stated that she was very surprised that the testator named her in his Will as a beneficiary because she and testator had some differences.

We are not convinced from the records that the Will in this case is a product of undue influence and fraud as alleged by the appellant. Neither the language of the Will nor the bequest made thereunder support a finding of undue influence and fraud under the circumstances presented in this case.

The appellant also contends in his bill of exceptions that the late Seymour Grann was not of sound and disposing memory at the time of the execution of the Last Will and Testament; therefore, the Will does not represent the true intent of the late Syemour Grann.

The law in this jurisdiction is that the burden to prove a testator's insanity or mental incapacity rests on the shoulders of the objector (s) to the Will. The presumption that a testator was mentally capacitated during the preparation of a Will places the onus on the objector (s) to prove the converse, that is, mental incapacity. *Greaves v. McCritty*, Supreme Court Opinion, March Term, A.D. 2012; *Eleanor Harriet Taylor-Cooper, et al. v. J. Nyema Baker et al.*, Supreme Court Opinion, March Term, 2016. On the issue of determining mental competence, the Supreme Court has held that the testimony of a medical doctor is qualified to determine

the mental capacity of a person. *Republic v. Wright*, 38 LLR 110, 125-126 (1995); *Massaquoi v. Republic*, Supreme Court Opinion, October Term, 2013; *Management of Comium v. Flomo*, Supreme Court Opinion, October Term, 2014.

The records show that the appellant presented no evidence in the form of a testimony from a medical doctor to establish that the late Seymour Grann was mentally incompetent at the time of the execution of the Will. None of the witnesses adduced by the appellant testified to the mental capacity of the late Seymour Grann, and even if they did, such testimony would not have sufficed because none of them was a qualified medical doctor to reach such conclusion. The only witness with a modicum of knowledge in medicine was placed on the stand by the appellee for the purpose of establishing the testator's age from his medical records. From the testimonies of the witnesses, the testator came to the office of Sherman and Sherman, Inc. and there had the Will signed and witness. In the absence of competent medical evidence, we cannot conclude, as the appellant urges us to, that the late Seymour Grann was not of sound disposing mind and memory at the time of the execution of the Will.

The appellant's final contention is that the signature appearing on the proffered Last Will and Testament of the late Seymour Grann is not the genuine signature of the testator. We note from the records that during the conduct of the trial, the appellant placed on the stand an expert witness, James E. Monroe, of the Liberian National Police, to testify to whether the signature appearing on the Will is the true and genuine signature of the late Seymour Grann. Quite bizarrely, however, when the witness took the stand and introduced himself and gave a synopsis of how he determines if a signature on a document is genuine or not, the appellant's counsel requested the court for a period of one week to allow the witness conduct an examination on the Will and other documents previously signed by the testator to determine the genuineness of the signature on the Will. This request was objected to by the appellee and denied by the Civil Law Court. We are in agreement with the Civil Law Court's denial of the said request as the request was an awful demonstration of negligence and a brazen attempt to delay the conclusion of the trial by the appellant's counsel. This is because when the Will was read in the Probate Court on December 4, 2020, the appellant became aware of the Will and had a copy thereof, and the Will was attached to the pleadings filed by the appellee. The appellant challenged the signature on the Will in his amended objection and in his reply filed to the appellee resistance; therefore, the appellant's counsel should have presented the Will and other documents containing the testator's signature to his expert for examination prior to placing the said expert on the stand to testify and present his method and conclusion to the jurors for consideration. The records show no other evidence proffered

by the appellee to satisfactorily establish that the signature appearing on the Will was not the true and genuine signature of the late Seymour Grann.

It is trite law in this jurisdiction that the in the exposition of Wills, the first great rule to which all other rules must be subservient is that the intention of the testator expressed in his/her Will shall prevail, provided that it is consistent with the rules of law on said disposition. *C.G. Bryant v. T.N. Roland*, 8 LLR 394, 397 (1944); *His Honor J. Vinton Holder v. Testate Estate of Sarah King-Howard*, Supreme Court Opinion, March Term, 2014.

In this case, we hold that the Will reflects that intention of the testator, the late Seymour Grann, as the appellant did not present proof that the Will is a product of undue influence and fraud, and that the testator lacked the mental capacity to execute the Will.

We take judicial notice of the principle of law that a lawyer who has participated in the drafting of a Will and is named as a beneficiary under said Will forfeits his bequest thereunder as it is conclusively presumed that the Will as it relates to him is a product of fraud and undue influence. This principle of law, however is not applicable in this case because our reading of the Will convinces us that the 15% of cash amount given to Sherman & Sherman, Inc. is more in the nature of a compensation to the firm for the services that would be rendered in ensuring that the dispositions made to other beneficiaries under the Will are given effect since the firm is the executor of the Will. Thus, rather than a testamentary disposition like the other bequests made in the Will, Sherman & Sherman was being compensated for services to be rendered in executing and giving effect to the Will. Our position is supported by the fact that in the Will, specifically at Clause 4, the testator named the sources of the funds to be distributed under the Will as follows: Liberia Bank for Development and Investment in Liberia and the Bank of America in California, United States of America. This means that in order to have full access to the testator's funds for distribution to the beneficiaries under the Will, the executor Sherman & Sherman, Inc., would have to incur the cost of travel to the United States and the further cost of instituting the necessary legal proceedings to obtain the funds from the Bank of America in California. Perhaps it was in anticipation of such an undertaking that the testator intentionally made provision in the Will so as to avoid any likely delay in the execution thereof which may be as a result of the executor's lack of funding to access the testator's funds located in the United States of America. Therefore, rather than being a beneficiary under the Will, Sherman & Sherman, Inc., is a service provider with the task of ensuring effectuation of the Will and is being compensated for providing the requisite services for the attainment of the object of the Will.

In essence, we read the Will to make testamentary dispositions to the other individuals and institutions named therein with the exception of Sherman & Sherman, Inc. The amount allotted to the Executor in the Will, Sherman & Sherman, Inc., that drafted the Will does not position it as a beneficiary under the Will, but a recipient of payment made for services to be rendered in ensuring the effectuation of the Will.

WHEREFORE AND IN VIEW OF THE FOREGOING, the final ruling entered by the Probate Court is hereby affirmed. The Clerk of this Court is ordered to send a Mandate to the Monthly and Probate Court for Montserrado County to resume jurisdiction over this case and give effect to the Judgment emanating from this Opinion. AND IT IS HEREBY SO ORDERED. Costs are disallowed.

WHEN THIS CASE WAS CALLED FOR HEARING COUNSELLORS FINLEY Y. KARNGAR AND DENISE S. SOKAN APPEARED FOR THE APPELLANT. COUNSELLOR H. VARNEY SHERMAN APPEARED FOR THE APPELLEE.